

Comment on the EU rules on the automated search and exchange of biometric data with non-EU countries

Submitted by: Meem Arafat Manab

Affiliation:

Marie Skłodowska-Curie Doctoral Fellow, Ontology Engineering Group, Universidad Politécnica de Madrid (HARNESS Doctoral Network, Horizon Europe); Research Associate (pro bono), School of Religion, Theology, and Peace Studies, Trinity College Dublin.

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The document describes the fundamental rights impact of this initiative as "limited." This is presented as a finding, but no fundamental rights impact assessment has been commissioned for this initiative yet, and no comparable structured assessment exists either. A call for evidence, I believe as a researcher in the EU, is meant to test a claim like this, not assume it in advance.

The named partners are the UK, the Western Balkans, Ukraine, Moldova, and Canada. Of these, only the UK has an adequacy decision under Article 36 of the Law Enforcement Directive. Canada's adequacy decision covers commercial data, not law enforcement data. Ukraine and Moldova have no adequacy decision of any kind. The document promises that "high EU standards" on data protection will accompany the data wherever it goes, but the legal instrument that would actually guarantee this does not exist for almost any of the partners named.

This is not a new concern raised for the first time here either. EDRI flagged this in 2020, when the Prüm II framework was first proposed: "considering the extremely limited democratic control and scrutiny over the use and development of police databases in Europe and the absence of solid evidence of successful investigations and prosecutions in Europe because of Prüm, we advise against the proposed extension of the exchange framework." (see <https://edri.org/our-work/edri-challenges-expansion-of-police-surveillance-via-prum/>) That extension went ahead regardless. The same warning applies again here, now extended to non-EU partners with weaker oversight than EU member states themselves.

It is also worth considering what happens to the data once it arrives. These are not, I have been iterating all my career, static records sitting in a file. We are not talking about spreadsheets with rows and columns in 2026. Facial recognition systems use AI and machine learning to match biometric templates against watchlists. The UK's own retrospective facial recognition algorithm, developed by a third-party vendor and used for facial searches by UK police,

was found by the UK Home Office's own review to produce significantly higher false match rates for Black and Asian faces, and for women, than for white men. This is documented and public, not a hypothetical scenario. In February 2026, this kind of error had a concrete victim: a man was wrongly arrested and held in custody after a false match generated by this technology, despite being noticeably younger and different in appearance from the actual suspect (see

<https://www.techandjustice.bsg.ox.ac.uk/research/united-kingdom>).

The UK is also still building its first national registry of police AI systems, expected to become operational only in 2026 (<https://www.computerweekly.com/news/366638196/Home-Office-announces-sweeping-police-technology-plans>), meaning that even its own governance infrastructure for this kind of processing is new and largely untested.

Taken together, the picture to me is this: EU biometric data would leave the EU and, in most cases, arrive in jurisdictions with no relevant adequacy decision, feeding into AI-driven matching systems that, where they can be checked, show documented bias and have already produced wrongful arrests. No fundamental rights impact assessment has evaluated this. Nothing comparable has either. The word "limited" is standing in for an assessment that has not even been done.

Before this initiative proceeds, the Commission should, at the very least, commission an actual fundamental rights impact assessment, require an LED adequacy decision for each partner before any data is exchanged rather than afterwards, and require independent bias testing of receiving systems as a hard precondition for participation. Anything less treats an untested assumption as a regulatory finding, and EU citizens' rights as paper tigers.

MEEM ARAFAT MANAB

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